

26NNCV03409 26NNCV03409

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Case Number: 26NNCV03409 Hearing Date: July 29, 2026 Dept: X

GEVIK KALSTIAN vs VAZGENI PAPIKIANI, et al.

DEFENDANT

TURO'S DEMURRER TO COMPLAINT

Defendant Turo, Inc.'s demurrer to the complaint was originally set for hearing on July 15, 2026. An opposition was due on July 1, 2026; however, one was not filed until July 13, 2026. On the same date, Plaintiff filed an amended complaint.

On the Court's own motion, the hearing was continued to July 28, 2026, with Turo filing a reply on July 22, 2026.

The operative initial complaint alleges a rear-end collision on August 14, 2025, at or near Glenoaks Boulevard and Lanark Street in Sun Valley, California, and names Vazgeni Papikiani and Turo, Inc. as defendants. The first cause of action for motor vehicle alleges that Papikiani operated the vehicle, and that Turo was among the defendants who owned the vehicle operated with permission and entrusted the vehicle. The second cause of action for general negligence alleges that Papikiani rear-ended plaintiff's vehicle and further alleges that "Defendant Turo, Inc. owned and entrusted their vehicle to Defendant Papikiani."

Tentative Ruling

The First Amended Complaint filed on July 13, 2026 is hereby stricken as untimely. (Code Civ. Proc., § 472 [A party may amend its pleading once without leave of the court ... after a demurrer ... is filed but before the demurrer ... is heard if the amended pleading is filed and served no

later than the date for filing an opposition to the demurrer or motion to strike].)

The Demurrer to the first and second causes of action for motor vehicle and general negligence is sustained with 20 days leave to amend.

Legal Authority and Analysis

A general demurrer may be taken to a complaint where “[t]he pleading does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10(e).) A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (Code Civ. Proc., § 430.30(a).) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.)

First Cause of Action – Motor Vehicle

The motor vehicle cause of action expressly alleges that Turo was a defendant that owned the subject vehicle operated with permission and entrusted the vehicle. Typically, at the pleading stage, those are ultimate allegations the Court must accept as true. The complaint pleads no supporting facts identifying the actual owner of the subject vehicle, no facts showing Turo had possession or control of that vehicle, and no facts showing Turo knew or should have known Papikiani was unfit to drive.

Further, in Turo Inc. v. Superior Court of City and County of San Francisco (2022) 80 Cal.App.5th 517, 519, 522-526, the Court of Appeal described Turo as an online platform that allows vehicle owners to list cars for rental and held that Turo does not own, lease, or control the vehicles listed on its platform. Considering that authority, the complaint's bare allegation that Turo owned the subject vehicle is not sufficient, without more, to state an ownership-based claim against Turo.

The opposition asserts that Turo either (1) knew that Papikiani lacked a valid driver's license, or (2) failed to perform the license verification it was legally required to conduct, in which case Turo is charged with the knowledge that reasonable screening would have revealed. (Opp., pp. 4-5.) To the extent Plaintiff intends to plead negligent entrustment, *Flores v. Enterprise Rent-A-Car Co.* (2010) 188 Cal.App.4th 1055, 1060, requires allegations that the defendant knew or should have known the driver was incompetent or unfit. The complaint contains no such allegations as to Turo. The demurrer to the first cause of action under is, therefore, sustained with leave to amend.

Second Cause of Action – General Negligence

The general negligence claim alleges Papikiani rear-ended Plaintiff, but as to Turo it alleges only that Turo "owned and entrusted" the vehicle. It does not allege any specific act or omission by Turo, any facts showing the nature of Turo's alleged duty, or any facts explaining how Turo's conduct caused plaintiff's injuries. The second cause of action does not allege sufficient facts against Turo. Conclusory allegations are insufficient. (See *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The demurrer to the second cause of action is sustained with leave to amend.

Defendant Turo is to give notice.